

# M/s Quereshi Cold Storage and General Mills v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 22 September 2022 · Writ - C No. 55892 of 2009 · **Dismissed as infructuous; interim security restraint vacated.**

## HEADNOTE

A writ challenging an additional-security demand under Para 4.20 of the U.P. Electricity Supply Code, 2005 was listed with similar 2009 matters and an interim restraint on that demand was granted; years later the petition was dismissed as infructuous by efflux of time and the interim order vacated, without a decision on Para 4.20.

## FACTUAL SUMMARY

M/s Quereshi Cold Storage and General Mills challenged a demand notice dated 1 July 2009 issued by Paschimanchal Vidyut Vitran Nigam Ltd. seeking additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005, and relied on an interim order in Writ Petition No. 30582 of 2009. On 27 October 2009 the Court listed the petition with other similar 2009 matters and restrained demand of additional security until further orders. In September 2022 counsel stated that efflux of time had rendered the writ infructuous.

## HOLDING-UNITS

### HOLDING-UNIT · UP-2005::4.20

additional security deposit

### HOLDING

The writ against a demand for additional security under Para 4.20 of the U.P. Electricity Supply Code, 2005 was dismissed as infructuous on the petitioner's statement that efflux of time had rendered it infructuous, and the 2009 interim restraint on that demand was vacated, without deciding the Code question. ¶ 2

## NOT DECIDED — NEGATIVE AUTHORITY

### NOT DECIDED — WHETHER ADDITIONAL SECURITY WAS LEVIABLE UNDER PARA 4.20 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005

Raised in the 2009 writ and made the subject of an interim restraint; never decided on merits. ¶ 1

## TABLE OF AUTHORITIES

| AUTHORITY                                                                                                                                               | PROPOSITION | HOW TREATED | CITED BY | TREATMENT |
|---------------------------------------------------------------------------------------------------------------------------------------------------------|-------------|-------------|----------|-----------|
| <i>M/s VehlNa Steels &amp; Alloys Pvt. Ltd. v. Paschimanchal Vidyut Vitran Nigam Ltd.</i><br>Writ Petition No. 30582 of 2009 (order dated 23 June 2009) |             |             | 1        | Referred  |